



Swiss Re – QBE Insurance's Trade Credit and Surety business

MN-40015

Phase 1 Determination

Acquisition may be put into effect

5 May 2026

1. Determination and statement of reasons

Notified acquisition	Swiss Re International SE (Swiss Re) proposes to acquire certain assets from QBE Insurance Holdings Pty Ltd (QBE) relating to its Credit & Surety business (QBE's TC&S Business), including data, employees and renewal rights (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Swiss Re, provides insurance, reinsurance and risk transfer solutions to mid to large-sized corporate customers. In Australia, Swiss Re provides a range of property and casualty insurance products, including trade finance insurance, surety bonds and claims management services. QBE is an Australian-based provider of a broad range of insurance and reinsurance products to personal, business, corporate and institutional customers. The target, QBE's TC&S Business, provides trade finance insurance, trade credit insurance and surety bonds.
Overlap between the parties	Swiss Re and QBE's TC&S Business overlap in the provision of trade finance insurance and surety bonds.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings - the aggregation post-Acquisition appears low, with Swiss Re's market shares in each of trade finance insurance and surety bonds estimated to be below 10%. - Swiss Re would likely continue to be constrained by alternative suppliers of trade finance and surety bonds in Australia, including Allianz, Chubb, Liberty Mutual, AXA and American International Group.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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Determination made by Commissioner Philip Williams pursuant to a delegation under section 25(1) of the Act